



This Agreement is made and entered into on _____, 2026, by and between The Outlier Group, LLC ("Broker" or "Disclosing Party"), and _____ ("Recipient" or "Receiving Party"), concerning any property, business opportunity, or confidential information disclosed by the Broker.

1. PURPOSE AND SCOPE

The Broker possesses confidential and proprietary information regarding real estate properties, business opportunities, and related matters, including but not limited to property details, financial data, operational procedures, customer data, trade secrets, business strategies, investment opportunities, deal structures, client relationships, market research, feasibility studies, and proprietary analyses ("Confidential Information"). The Recipient intends to receive such Confidential Information solely to evaluate potential real estate transactions, business acquisitions, consulting arrangements, or other legitimate business opportunities disclosed by the Broker.

2. CONFIDENTIAL INFORMATION DEFINED

"Confidential Information" means any and all non-public, proprietary, or confidential information disclosed by the Disclosing Party, including but not limited to:

- a. Real estate project details, specifications, and development plans
- b. Property information, valuations, and financial analyses
- c. Business acquisition opportunities and related documentation
- d. Client lists, contact information, and business relationships
- e. Investment opportunities and deal structures
- f. Market research, feasibility studies, and proprietary analyses
- g. Business strategies, methods, and processes
- h. Financial information, pricing, and cost structures
- i. Any information marked as "Confidential" or that would reasonably be considered confidential

Confidential Information includes information disclosed orally, in writing, electronically, or in any other form.

3. NON-DISCLOSURE OBLIGATIONS

The Receiving Party agrees to:

- a. **Maintain Confidentiality:** Hold all Confidential Information in strict confidence and not disclose, permit the disclosure of, release, disseminate, or transfer any Confidential Information to any other person or entity without prior written consent from the Disclosing Party.

- b. Limited Use: Use Confidential Information solely for the stated Purpose and not for any other purpose, including competitive advantage.
- c. Protection: Take reasonable precautions to protect Confidential Information, using at least the same degree of care used to protect its own confidential information, but no less than reasonable care.
- d. Limited Access: Restrict access to Confidential Information to employees, advisors, or representatives who have a legitimate need to know and who are bound by confidentiality obligations at least as restrictive as those contained herein.
- e. No Reverse Engineering: Not reverse engineer, disassemble, or otherwise attempt to derive the source or underlying ideas of any Confidential Information.

4. NON-CIRCUMVENT PROVISIONS

The Recipient agrees not to directly or indirectly engage in any transaction, business dealings, or relationships with any property owner(s), business owner(s), employees, suppliers, clients, or affiliates of any business or property disclosed by the Broker without the explicit written consent of the Broker. This restriction remains in effect for a period of twenty-four (24) months from the date of this Agreement.

This non-circumvent obligation includes but is not limited to:

- a. Contacting any business or property owners directly using any means
- b. Attempting to negotiate or purchase any property or business outside of the Broker's involvement
- c. Engaging in any transaction with third parties introduced by Broker in connection with any disclosed opportunity
- d. Soliciting or attempting to hire any employees or contractors of disclosed businesses
- e. Interfering with any existing business relationships disclosed by the Broker

5. BROKER COMMISSION AND REPRESENTATION

The Recipient represents and warrants that:

- a. When acting through an agent or broker, both the agent and principal are jointly and severally liable for all obligations under this Agreement
- b. Any broker commission, advisory fees, or finder's fees shall be payable only to The Outlier Group, LLC unless otherwise agreed to in writing
- c. They will not attempt to circumvent the Broker's right to compensation in any resulting transaction
- d. The agent signing on behalf of the principal has full authority to bind the principal to this Agreement

6. EXCEPTIONS TO CONFIDENTIALITY

The obligations in Sections 3 and 4 do not apply to information that:

- a. Is or becomes publicly available through no breach of this Agreement by the Receiving Party.
- b. Was rightfully known by the Receiving Party prior to disclosure
- c. Is rightfully received from a third party without breach of confidentiality
- d. Is independently developed without use of Confidential Information
- e. Is required to be disclosed by law or court order (with prompt notice to Disclosing Party)

7. DISCLAIMER AND WARRANTIES

NEITHER BROKER NOR ANY PROPERTY/BUSINESS OWNER MAKES ANY REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED, AS TO THE ACCURACY OR COMPLETENESS OF ANY INFORMATION PROVIDED, including but not limited to financial statements, business operations, contracts, customer data, property conditions, or real estate valuations. All information is provided for informational purposes only. Recipient acknowledges and assumes complete responsibility for reconfirmation and verification of all information received and agrees to conduct their own due diligence.

8. RETURN OF MATERIALS

Upon written request by the Disclosing Party, or upon termination of discussions, the Receiving Party shall promptly return or destroy all documents, materials, and copies containing Confidential Information.

9. NO LICENSE OR RIGHTS GRANTED

No license, right, title, or interest in any Confidential Information is granted to the Receiving Party. All Confidential Information remains the sole property of the Disclosing Party.

10. NO OBLIGATION TO DISCLOSE

Nothing herein obligates the Disclosing Party to disclose any particular Confidential Information or to enter into any further agreement.

11. TERM AND SURVIVAL

This Agreement shall remain in effect for a period of three (3) years from the date of execution, unless earlier terminated by written agreement of both parties. The non-circumvent obligations shall remain in effect for twenty-four (24) months as specified in Section 4. All obligations regarding Confidential Information and non-circumvent provisions shall survive termination of this Agreement.

12. REMEDIES

The Receiving Party acknowledges that disclosure of Confidential Information or violation of non-circumvent provisions would cause irreparable harm to the Disclosing Party. Therefore, the Disclosing Party shall be entitled to seek equitable relief, including injunction and specific performance, in addition to all other remedies available at law or equity, including monetary damages and attorney's fees.

13. AUTHORITY TO BIND

The persons signing on behalf of the Recipient and Broker represent that they have the full authority to bind the party for whom they sign to all terms and conditions of this Agreement. When an agent signs on behalf of a principal, both parties are jointly and severally liable for all obligations hereunder.

14. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Florida, without regard to conflict of law principles.

15. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties concerning the subject matter hereof and supersedes all prior agreements and understandings, whether written or oral. This Agreement may only be modified in writing, signed by both parties.

16. COUNTERPARTS

This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Execution and delivery of this Agreement by electronic transmission of a scanned or photographed signature shall be deemed as effective as an original signature.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date first written above.

THE OUTLIER GROUP, LLC

By: _____

Name: _____

Title: _____

RECEIVING PARTY - AGENT/BROKER (if applicable)

Signature: _____

Printed Name: _____

Title: _____

Company: _____

Date: _____

RECEIVING PARTY - PRINCIPAL/BUYER

Signature: _____

Printed Name: _____

Title: _____

Company: _____

Date: _____